

UPSC INDIAN POLITY

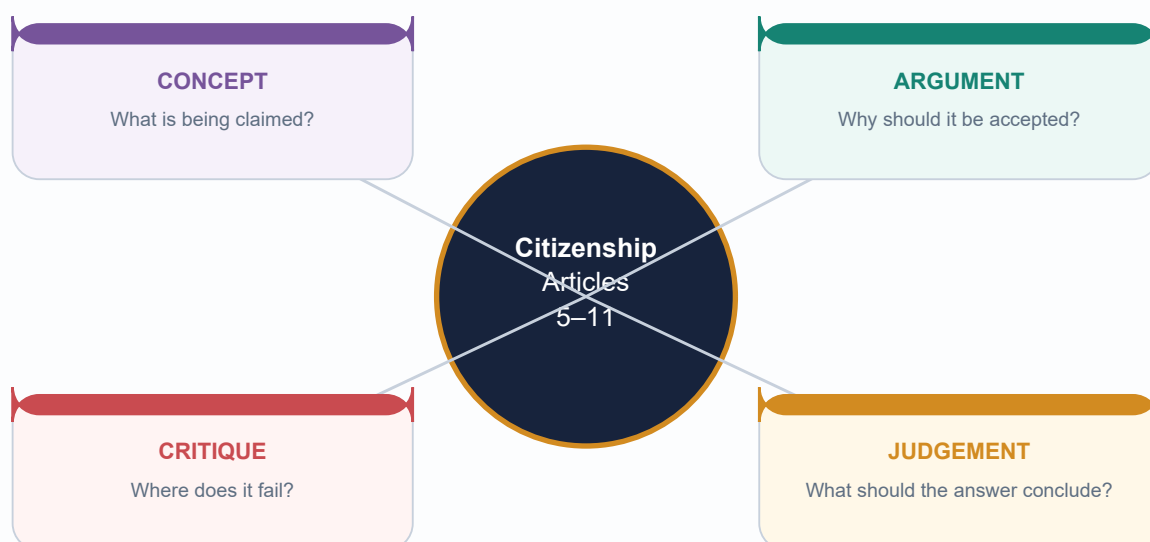
Citizenship (Articles 5–11) — ADVANCED / COMPLETE Deep-Learning Visual Notes

Indian Polity · GS Paper II · Prelims + Mains

Layer 1: Basic foundation · Layer 2: Advanced constitutional and exam depth

Sources: Citizenship.md + 06_Citizenship.md

Learning cards: 20



Facts from official sources | Inferences clearly marked | No fabricated data

HIGH UPSC RELEVANCE

HIGH

Foundation • Core Foundation

GS-II Indian
Polity

INTRO & ORIGIN

greater than **Subject:** Polity • **Tier:** Basic (foundation) • **GS Paper:** GS-II*Foundation learning layer: concepts → constitutional detail → UPSC application.*

CORE FOUNDATION: RECALL MAP

Core Foundation

Dimension 1

greater than **Subject:** Polity • **Tier:** Basic (foundation) • **GS Paper:** GS-II

Dimension 2

greater than **Grounded in:** Laxmikant Ch. 6. □ = from book • □□ = update • □ = current affairs.

Dimension 3

greater than **Full depth:** advanced/06Citizenship.md.

STATIC THEORY

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MUST-KNOW FACTS

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MAINS ANGLE

STUDY LINK

Citizenship (Articles 5–11) — ADVANCED / COMPLETE → Core Foundation

HIGH

Foundation • Snapshot

GS-II Indian
Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Item	Fact
□ Articles	5–11, Part II
□ Constitution covers	only who were citizens on 26 Jan 1950
□ Rest handled by	Citizenship Act, 1955 (amended often)
□ Type	Single citizenship (like Canada) — no state citizenship
□ Dual citizenship	India does not recognise it under the Citizenship Act; Art 9 addresses voluntary foreign citizenship at commencement. OCI is NOT dual citizenship

MAINS ANGLE

STUDY LINK

Citizenship (Articles 5–11) — ADVANCED / COMPLETE → Snapshot

HIGH

Foundation · Core idea

GS-II Indian Polity

INTRO & ORIGIN

□ Constitution gives **no permanent/elaborate** rules — it just names the four categories of people who were citizens at commencement and hands the rest to **Parliament (Art 11)**, which passed the **Citizenship Act 1955**.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

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MAINS ANGLE

STUDY LINK

Citizenship (Articles 5–11) — ADVANCED / COMPLETE → Core idea

HIGH

Foundation · Acquisition — 5 ways

GS-II Indian Polity

INTRO & ORIGIN

greater than □ **Mnemonic: "BeD RaIN"** = Birth, Descent, Registration, Naturalisation,

Foundation learning layer: concepts → constitutional detail → UPSC application.

ACQUISITION — 5 WAYS: RECALL MAP

Acquisition — 5 ways

Dimension 1 greater than □ Mnemonic: "BeD RaIN" = Birth, Descent, Registration, Naturalisation,	Dimension 2 greater than Incorporation of territory.
Dimension 3 □ Birth rule tightened over time: 1950-1987 (any parent's nationality OK) → 1987 (either parent a citizen) → 2004 (both parents, or one citizen + othe	

STATIC THEORY

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MEMORY HOOK

greater than Mnemonic: "BeD RaIN" = Birth, Descent, Registration, Naturalisation,

MUST-KNOW FACTS

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MAINS ANGLE**STUDY LINK**

Citizenship (Articles 5–11) — **ADVANCED / COMPLETE** → Acquisition — 5 ways

HIGH**Foundation · Loss — 3 ways**GS-II Indian
Polity**INTRO & ORIGIN**

greater than □ **Mnemonic: "R-T-D"** = Renunciation (voluntary), Termination (took foreign

Foundation learning layer: concepts → constitutional detail → UPSC application.

STATIC THEORY

• greater than citizenship), **Deprivation** (Centre cancels — fraud/disloyalty).

MEMORY HOOK

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MAINS ANGLE**STUDY LINK**

Citizenship (Articles 5–11) — **ADVANCED / COMPLETE** → Loss — 3 ways

HIGH**Foundation · Single citizenship — exceptions**GS-II Indian
Polity**INTRO & ORIGIN**

□ Uniform rights everywhere, **except**: (1) Art 16 residence for some state jobs (now only AP & Telangana); (2) state concessions to residents (fees); (3) Art 19 curbs in **tribal areas**; (4) *till 2019* J&K permanent residents under **Art 35A** (abolished 2019).

Foundation learning layer: concepts → constitutional detail → UPSC application.

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MAINS ANGLE**STUDY LINK**

Citizenship (Articles 5–11) — **ADVANCED / COMPLETE** → Single citizenship — exceptions

HIGH

Foundation • Must-Know Facts

GS-II Indian
Polity

INTRO & ORIGIN

- Only **citizens** get Art 15, 16, 19, 29, 30, right to vote & to hold high offices.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS: RECALL MAP

Must-Know Facts

Dimension 1 Only citizens get Art 15, 16, 19, 29, 30, right to vote & to hold high offices.	Dimension 2 Enemy aliens don't get Art 22 (arrest protection).
Dimension 3 OCI cardholders cannot vote, be MP/MLA, President/VP, or SC/HC judge.	Dimension 4 Assam Accord / NRC cut-off = 24 March 1971 (Citizenship Amdt Act 1985).

STATIC THEORY

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MAINS ANGLE

STUDY LINK

Citizenship (Articles 5–11) — **ADVANCED / COMPLETE** → Must-Know Facts

HIGH

Foundation • Current link — CAA 2019

GS-II Indian
Polity

NEWS TRIGGER

- Citizenship (Amendment) Act 2019**: creates a facilitated application route for **6 communities** (Hindu, Sikh, Buddhist, Jain, Parsi, Christian) from **Pakistan, Bangladesh, Afghanistan** who entered India **by 31 Dec 2014**.
- Rules notified March 2024; first certificates issued May 2024**.
- Challenged in SC on Art 14 grounds. It does **not automatically confer citizenship**; statutory eligibility, application and scrutiny remain necessary.
- For acquisition/loss detail, OCI, Art 35A & full CAA analysis → advanced/06_Citizenship.md.

INTRO & ORIGIN

Exam-ready treatment of ☐ Current link — CAA 2019 ☐.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE**STUDY LINK**

Citizenship (Articles 5–11) — ADVANCED / COMPLETE → ☐ Current link — CAA 2019 ☐

HIGH**Advanced • Core Foundation****GS-II** Indian Polity**INTRO & ORIGIN**

greater than **Subject:** Polity · **Tier:** Advanced (exam depth) · **GS Paper:** GS-II

Advanced learning layer: concepts → constitutional detail → UPSC application.

CORE FOUNDATION: RECALL MAP**Core Foundation**

Dimension 1 greater than Subject: Polity · Tier: Advanced (exam depth) · GS Paper: GS-II	Dimension 2 greater than Grounded in: Indian Polity by M. Laxmikant, Ch. 6 / Part II (direct check of the local Sixth Revised Edition PDF) + official update.
Dimension 3 greater than ☐ = from source book · ☐ = inference / post-book · ☐ = current affairs.	Dimension 4 greater than Companion: basic/Citizenship.md.

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MUST-KNOW FACTS

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MAINS ANGLE**STUDY LINK**

Citizenship (Articles 5–11) — ADVANCED / COMPLETE → Core Foundation

HIGH

Advanced · Citizen vs alien

GS-II Indian
Polity

INTRO & ORIGIN

□ India has **citizens** (full members, all civil + political rights, owe allegiance) and **aliens** (citizens of another state). Aliens = **friendly** (cordial-relation countries) or **enemy** (country at war with India — get fewer rights, e.g. **no Art 22** protection against arrest/detention).

Advanced learning layer: concepts → constitutional detail → UPSC application.

STATIC THEORY

• □ **Rights available ONLY to citizens** (denied to aliens): Art **15** (non-discrimination), Art **16** (equality in public employment), Art **19** (six freedoms), Art **29 & 30** (cultural/educational), right to **vote** (LS + state assembly), right to **contest** Parliament/state legislature, eligibility for **high offices** (President, VP, SC/HC judges, Governor, AG, Advocate General). □ In India **both birth & naturalised** citizens can be President (in USA, only birth citizen).

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MAINS ANGLE

STUDY LINK

Citizenship (Articles 5–11) — **ADVANCED / COMPLETE** → Citizen vs alien

HIGH

Advanced · Constitutional provisions (Art 5–11, Part II)

GS-II Indian
Polity

INTRO & ORIGIN

□ Constitution has **neither permanent nor elaborate** citizenship provisions — it only identifies who were citizens **at commencement (26 Jan 1950)**. It leaves acquisition/loss thereafter to **Parliament** → **Citizenship Act 1955**.

Advanced learning layer: concepts → constitutional detail → UPSC application.

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MAINS ANGLE

STUDY LINK

Citizenship (Articles 5–11) — **ADVANCED / COMPLETE** → Constitutional provisions (Art 5–11, Part II)

HIGH

Advanced · Four categories who became citizens on 26 Jan 1950

GS-II Indian Polity

INTRO & ORIGIN

□ (a) **domiciled** persons (born in India / a parent born in India / ordinarily resident 5 yrs); (b) persons who **migrated from Pakistan**; (c) persons who **migrated to Pakistan but returned** for resettlement; (d) **persons of Indian origin residing outside India** (registered by Indian consulate). □ **Art 9**: voluntarily acquiring a **foreign citizenship** = **not** an Indian citizen (no dual citizenship). □ Art 10 (continuance), Art 11 (Parliament's power over all citizenship matters).

Advanced learning layer: concepts → constitutional detail → UPSC application.

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MAINS ANGLE

STUDY LINK

Citizenship (Articles 5–11) — **ADVANCED / COMPLETE** → Four categories who became citizens on 26 Jan 1950

HIGH

Advanced · Citizenship Act 1955 — Acquisition (5 ways) □

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the advanced source layer.

KEY DATA

Mode	Key rule
□ Birth	Born in India 26 Jan 1950–1 Jul 1987 : citizen *irrespective of parents*. On/after 1 Jul 1987 : if either parent is a citizen. On/after 3 Dec 2004 : both parents citizens, OR one citizen & other not an illegal migrant . (Children of foreign diplomats & enemy aliens excluded.)
□ Descent	Born outside India, before 10 Dec 1992 : if father was a citizen. On/after 10 Dec 1992 : if either parent . From 3 Dec 2004 : birth must be registered at Indian consulate within 1 year .
□ Registration	For PIOs / spouse of citizen (7 yrs ordinary residence), minor children, OCI-cardholder of 5 yrs, etc. Oath of allegiance required.
□ Naturalisation	For an alien (not illegal migrant): 12 months continuous residence just before application + 11 of the preceding 14 years ; good character; knows an 8th-Schedule language . Govt may waive all conditions for distinguished service to science/art/peace etc.
□ Incorporation of territory	Govt specifies citizens of newly-added territory (e.g. Citizenship (Pondicherry) Order 1962).

MAINS ANGLE

STUDY LINK

Citizenship (Articles 5–11) — ADVANCED / COMPLETE → Citizenship Act 1955 — Acquisition (5 ways) □

HIGH

Advanced · Citizenship Act 1955 — Acquisition (5 ways) □

GS-II Indian Polity

INTRO & ORIGIN

□ **Assam Accord special provision (Citizenship Amendment Act 1985):** persons who came from Bangladesh to Assam before 1 Jan 1966 → deemed citizens from that date; those 1 Jan 1966–24 Mar 1971 register & become citizens after 10 yrs from detection (no vote in interim). □ (Basis of the **NRC** cut-off of 24 March 1971.)

Advanced learning layer: concepts → constitutional detail → UPSC application.

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MAINS ANGLE

STUDY LINK

Citizenship (Articles 5–11) — ADVANCED / COMPLETE → Citizenship Act 1955 — Acquisition (5 ways) □

HIGH

Advanced · Loss of citizenship (3 ways) □

GS-II Indian Polity

INTRO & ORIGIN

□ **Renunciation** (voluntary declaration; minor children also lose it, may resume at 18); **Termination** (automatic on voluntarily acquiring foreign citizenship); **Deprivation** (compulsory by Centre — fraud, disloyalty, trading with enemy in war, 2-yr imprisonment within 5 yrs of registration/naturalisation, or 7 yrs continuous residence abroad).

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MAINS ANGLE

STUDY LINK

Citizenship (Articles 5–11) — ADVANCED / COMPLETE → Loss of citizenship (3 ways) □

HIGH

Advanced • Single citizenship □

GS-II Indian
Polity

INTRO & ORIGIN

□ Despite a federal dual polity, India (like **Canada**) has **single citizenship** — no separate state citizenship; all citizens owe allegiance only to the Union. USA & Switzerland have **double citizenship**. Aim: fraternity, unity, integrated nation.

Exceptions to uniform rights: (1) Art 16 residence qualification for certain state jobs (Public Employment Act 1957, now only AP & Telangana); (2) states may give residents concessions outside constitutional rights (e.g. education fees); (3) Art 19 restricted to protect **STs / tribal areas**; (4) *till 2019* J&K permanent-resident privileges under **Art 35A** (inserted by 1954 Presidential Order under Art 370; **abolished 2019**).

Advanced learning layer: concepts → constitutional detail → UPSC application.

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MAINS ANGLE

STUDY LINK

Citizenship (Articles 5–11) — **ADVANCED / COMPLETE** → Single citizenship □

HIGH

Advanced • Overseas Citizenship of India (OCI) □

GS-II Indian
Polity

INTRO & ORIGIN

□ **L.M. Singhvi** High-Level Committee on Indian Diaspora (2000, report 2002) → **Citizenship (Amdt) Act 2003** created **OCI** for PIOs of 16 countries (except Pakistan & Bangladesh) and repealed Commonwealth citizenship. **2005 Amdt** widened it to PIOs of all countries (except Pak/Bangladesh). **2015 Amdt** merged **PIO + OCI** into a single "**OCI Cardholder**" scheme.

□ **OCI is NOT dual citizenship** (Art 9 forbids it). □ OCI cardholders **cannot**: vote, become President/VP/SC-HC judge, become MP/MLA, get public employment, or equality of opportunity in public jobs. Registration cancellable for fraud/disaffection/trading with enemy.

Advanced learning layer: concepts → constitutional detail → UPSC application.

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MAINS ANGLE

STUDY LINK

Citizenship (Articles 5–11) — **ADVANCED / COMPLETE** → Overseas Citizenship of India (OCI) □

HIGH

Advanced • CA anchor — Citizenship (Amendment) Act, 2019

GS-II Indian Polity

INTRO & ORIGIN

CAA 2019 offers a **facilitated application route** for **six communities** — **Hindu, Sikh, Buddhist, Jain, Parsi, Christian** — from **Pakistan, Bangladesh, Afghanistan** who entered India **on or before 31 December 2014** (naturalisation residence cut to **5 years**). Muslims and other countries excluded — hence the equality/secularism (Art 14) debate. **Rules notified March 2024; first citizenship certificates granted May 2024** (online portal). The Act does **not grant automatic citizenship** merely by community/origin; the applicant must satisfy the statutory route and scrutiny. Constitutional challenge pending in Supreme Court (Art 14 discrimination + linkage with NRC fears).

Advanced learning layer: concepts → constitutional detail → UPSC application.

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MAINS ANGLE

STUDY LINK

Citizenship (Articles 5–11) — **ADVANCED / COMPLETE** → CA anchor — Citizenship (Amendment) Act, 2019

HIGH

Advanced • UPSC Traps

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of UPSC Traps.

Advanced learning layer: concepts → constitutional detail → UPSC application.

UPSC TRAPS

WRONG: Constitution has detailed permanent citizenship provisions

CORRECT: only **who were citizens in 1950**; rest is by **Parliament (Citizenship Act 1955)**.

WRONG: India allows dual citizenship via OCI

CORRECT: **Art 9 forbids dual citizenship**; OCI ≠ citizenship.

WRONG: Anyone born in India is automatically a citizen

CORRECT: true only **1950–1987**; tightened in 1987 & 2004.

WRONG: Naturalisation needs 5 years

CORRECT: **11 of preceding 14 years + 12 months** continuous.

WRONG: Citizenship is a Fundamental Right

CORRECT: it is **not**; governed by ordinary law (Art 11).

WRONG: CAA grants citizenship to all migrants

CORRECT: only **6 named communities** from **3 countries**, cut-off **31 Dec 2014**.

WRONG: NRC cut-off is 2014

CORRECT: **Assam NRC** cut-off is **24 March 1971** (Assam Accord).

MAINS ANGLE**STUDY LINK**

Citizenship (Articles 5–11) — **ADVANCED / COMPLETE** → UPSC Traps

HIGH**Advanced · Mains angles****GS-II** Indian
Polity**INTRO & ORIGIN**

Exam-ready treatment of Mains angles.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

CAA 2019 and the secular-citizenship debate — does a religion-based fast-track violate Art 14? Single citizenship vs demands for domicile-based reservations/jobs — unity vs regional aspiration. OCI: soft power and diaspora engagement without political rights.

STUDY LINK

Citizenship (Articles 5–11) — **ADVANCED / COMPLETE** → Mains angles

End of Register Notes — UPSC Agent / Copilot CLI